CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, October 24, 2018
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, October 24, 2018 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Myra L. Taylor, Commissioner Timothy Holmes, and Commissioner Matthew Pigatt. Also in attendance were: City Manager Yvette Harrell, City Attorney Vincent T. Brown, and City Clerk Joanna Flores. Commissioner Riley arrived at 7:02 p.m. Vice Mayor Kelley arrived at 7:03 p.m.

3. INVOCATION:

The invocation was delivered by Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

The commission presented awards to Ashley Mincey and Shanika Patterson who are residents of Opa-locka and were both contestants on the television show Master Chef.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-2 and 13-3 (Commissioner Pigatt); deleted 15-1, 15-2, 15-3, 15-4, 15-5, 15-6, and 16-1 (City Manager Harrell).

NEW ITEMS:

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING RESOLUTION(S) PURSUANT TO SECTION 4.5(B) OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, DIRECTING THAT AMOUNTS APPROPRIATED FOR CURRENT OPERATIONS FOR THE CURRENT FISCAL YEAR (FY 2017-2018) BE DEEMED ADOPTED FOR THE ENSUING FISCAL YEAR (FY 2018-2019) FOR A PERIOD OF

FIFTEEN (15) DAYS, WITH ALL ITEMS PRORATED ACCORDINGLY, UNTIL SUCH TIME AS THE COMMISSION ADOPTS AN ANNUAL BUDGET FOR THE ENSUING FISCAL YEAR (FY 2018-2019); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above title was read by City Clerk Flores.

It was moved by Commissioner Riley, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 14-1.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO RETROACTIVELY EXECUTE INTERLOCAL AGREEMENT EXTENSION FL-37-X082-00 BETWEEN THE SOUTH FLORIDA REGIONAL TRANSPORTATION AUTHORITY AND THE CITY OF OPA-LOCKA FOR THE TRANSIT CIRCULATORY NORTH ROUTE FOR THE PERIOD OF FEBRUARY 3, 2015 THROUGH JANUARY 3, 2017; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above title was read by City Clerk Flores.

It was moved by Commissioner Riley, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 14-2.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

7. APPROVAL OF AGENDA:

It was moved by Commissioner Riley, seconded by Commissioner Pigatt to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

8. APPROVAL OF MINUTES:

Special Commission Meeting Minutes – July 20, 2018

It was moved by Commissioner Riley, seconded by Commissioner Holmes to approve the minutes from the Special Commission Meeting of July 20, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Special Commission Meeting Minutes – August 24, 2018

It was moved by Commissioner Riley, seconded by Commissioner Holmes to approve the minutes from the Special Commission Meeting of August 24, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Regular Commission Meeting Minutes – September 12, 2018

It was moved by Commissioner Riley, seconded by Commissioner Holmes to approve the minutes from the Regular Commission Meeting of September 12, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Special Commission Meeting Minutes – September 18, 2018

It was moved by Commissioner Riley, seconded by Commissioner Holmes to approve the minutes from the Special Commission Meeting of September 18, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes

Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, said that he does not have any reports or announcements, but will take any concerns the commission has back to Commissioner Jordan.

10. PUBLIC PRESENTATION:

Andrea Robinson, Partnership Specialist, 2020 Census, said they want to recruit for the census so they the country can see who is here. This determines the funding that can be sent down to run the municipalities. She had come to several previous events on Sherbondy Park and received a welcomed response. She brought flyers and asked that everyone who is interested go online and apply; the salaries start at $17.00 per hour and is ideal for everyone.

11. CITIZENS' INPUT:

Eric Redmon, 2766 Villa Francine, Opa-locka, FL, thanked the manager for finally taking notice of Villa Francine and sending the necessary documents over to the attorney's office. He hopes the commission will instruct the attorney to foreclose on the property that is adjacent to his property because it is causing a nuisance. He said a certain commissioner spread rumors about a lawsuit that was filed regarding previous commissioners running for office. He said they could not run and this is not true. This same commissioner also said his association took down campaign signs and this is not true. He himself took down the signs and he hopes he gives them back.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, thanked the commission for their service as public servants because it is a hard job to do from the other side of the dais. She let it be known that certain people are using government facilities for campaigning and that is illegal. She said she will be filing a lawsuit for how she has been treated and talked about. She said the saggy pants ordinance should apply to women as well.

Mary Snipes, 2336 York Street, Opa-locka, FL, said there is a water facility on 24th Avenue and York Street and recently in the last six months, there is a generator going constantly; no one is getting sleep at night. The Streets near Burlington Street are riddled with potholes and all of the resident's cars are being damaged. There is a large tree across from her that the City put there and it is not being maintained.

Mayor Taylor asked the manager to have someone speak to Ms. Snipes in the rear of the room.

Wanita Rigsby, 915 Codadad Street, Opa-locka, FL, questioned her water bills and how it has gone so high; it is unfair for the citizens to receive a one thousand dollar water bill for two months when there are only two people in the house. She asked that the commission is more lenient and caring as there are a lot of elderly residents in the community.

Angelina, 510 Perviz Avenue, Opa-locka, FL, said the traffic is becoming too heavy in her area and she is concerned because there are children who play in the street. There is also water leaking in the street and something needs to be done about it.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO DO ALL THAT IS NECESSARY TO INSTALL PORTABLE RESTROOMS AT SHERBONDY PARK; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Holmes*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Holmes, seconded by Commissioner Riley for discussion.

Commissioner Pigatt said that he pulled the item to get clearer detail on this item. When will they be installed and for how long?

Commissioner Holmes said for as long as it may take. There are men and boys squatting behind trees and it should not be when there were toilets there before.

Commissioner Pigatt asked what the options are of having these installed and what are the costs?

Commissioner Holmes said when the old city hall was opened there were public restrooms in the back. The manager needs to get in contact with the parks director and see what it will take to have the toilets reinstalled.

Commissioner Riley said this is a temporary solution to a permanent fix to avoid the community from showing themselves on the park.

Vice Mayor Kelley asked for clarity and said that different options were put out there, but he did not hear the conclusion. In the past there have been safety issues with the people doing all kinds of things, especially after hours. It sounds like it will not come back to the commission if it says take the steps to install, but it clearly has a fiscal impact.

Commissioner Holmes said he cannot believe what he is hearing. The toilets have always been on the park and there have been no rapes, robberies or murders.

Mayor Taylor asked the sponsor if he wants the manager to bring back the item or call for the vote.

Commissioner Holmes said the manager can bring back the item; he is only doing this for the betterment of the community.

Commissioner Pigatt asked if a friendly amendment can be done to provide the options for a temporary to a permanent solution that reflects cost breakdown.

Commissioner Holmes said that the parks director can speak to the cost of the toilets as this has been done in the past.

Commissioner Kelley said that he wants to ensure that if the item has a cost associated with it that it is clearly defined.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO DO ALL THAT IS NECESSARY TO REPLACE OR REPAIR THE NO "IF ANDS OR BUTTS" SIGNAGE THROUGHOUT THE CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Holmes*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Holmes, seconded by Commissioner Riley for discussion.

Commissioner Holmes said that the purpose of the resolution is because some of the signs around the City may need to be cleaned or repaired. It has significance because it was the first of its kind in the country and was praised by everyone.

Commissioner Pigatt asked the manager what are the repercussions of not following the signage on this item.

City Manager Harrell said every year, roughly 50 fines are written, but it has not gone beyond that.

Commissioner Pigatt asked how much the fine is.

City Manager Harrell asked the chief to come before the commission.

Chief of Police James Dobson said that the fine is one hundred dollars for not obeying the signs.

Commissioner Riley called for a point of order and said this is only about the signs being replaced or repaired so anything else is not to be discussed.

Commissioner Pigatt said that he is not in support of the signs at this time. The signs are archaic and outdated and if there is no money, he does not understand why there is even a discussion about it now.

There being no further discussion, the motion on the resolution passed by a 3-2 vote.

Vice Mayor Kelley	No
Commissioner Pigatt	No
Commissioner Riley	Yes

Commissioner Holmes	Yes
Mayor Taylor	Yes

3 (13-5). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, HIRING JOHNSON, ANSELMO, MURDOCH, BURKE, PIPER & HOCHMAN, P.A. TO DEFEND THE CITY OF OPA-LOCKA IN BARRY E. MUKAMAL VS. CITY OF OPA-LOCKA CASE NUMBER 18-28275-CA-01; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Attorney*

The above resolution was read by Attorney Brown.

It was moved by Vice Mayor Kelley, seconded by Commissioner Riley for discussion.

Mayor Taylor asked the attorney if he wanted to make a statement before the commission began their discussion.

City Attorney Brown said the item came about because of the lawsuit brought on by Roy Steven Shiver as a breach of contract for his termination back in 2015.

Vice Mayor Kelley said according to the documents, the Florida League of Cities were handling this, but are no longer involved. He wants to know why? He also asked the attorney how much has already been paid regarding the plaintiff.

City Attorney Brown said other than the contract, he is not aware that the City has paid out anything else. He does not have the exact payout amount in front of him at this time. The City has not spent any money in legal fees thus far. The retainer was twenty thousand dollars ($20,000.00), but he was able to have it reduced to ten thousand dollars ($10,000.00).

Vice Mayor Kelley asked why the league is no longer providing defense.

City Attorney Brown said that this falls out of the realm of what the league normally handles which are workers compensation, slip and falls, and accidents and injuries.

Vice Mayor Kelley asked if there were any reimbursements on these amounts if the City prevails.

City Attorney Brown said, "No."

There being no further discussion, the motion on the resolutions passed by a 4-1 vote.

Vice Mayor Kelley	No
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A MEMORANDUM OF UNDERSTANDING (MOU) BETWEEN THE FLORIDA DEPARTMENT OF LAW ENFORCEMENT (FDLE) AND THE CITY OF OPA-LOCKA POLICE DEPARTMENT (OLPD) FOR THE ONGOING PARTICIPATION IN THE REGIONAL LAW ENFORCEMENT EXCHANGE (R-LEX) SYSTEM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CALLING ON SENATOR BILL NELSON AND THE UNITED STATES SENATE TO AFFIRM THE RIGHT OF ALL RENTERS, ESPECIALLY SENIORS, TO A SAFE, AFFORDABLE, AND DECENT HOME; AUTHORIZING THE CITY CLERK TO TRANSMIT THIS RESOLUTION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Riley*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Riley, seconded by Commissioner Holmes to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING RESOLUTION(S) PURSUANT TO SECTION 4.5(B) OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, DIRECTING THAT AMOUNTS APPROPRIATED FOR CURRENT OPERATIONS FOR THE CURRENT FISCAL YEAR (FY 2017-2018) BE DEEMED ADOPTED FOR THE ENSUING FISCAL YEAR (FY 2018-2019) FOR A PERIOD OF FIFTEEN (15) DAYS, WITH ALL ITEMS PRORATED ACCORDINGLY, UNTIL SUCH TIME AS THE COMMISSION ADOPTS AN ANNUAL BUDGET FOR THE ENSUING FISCAL YEAR (FY 2018-2019); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Holmes, seconded by Commissioner Riley to pass the resolution.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Riley	Yes

Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO RETROACTIVELY EXECUTE INTERLOCAL AGREEMENT EXTENSION FL-37-X082-00 BETWEEN THE SOUTH FLORIDA REGIONAL TRANSPORTATION AUTHORITY AND THE CITY OF OPA-LOCKA FOR THE TRANSIT CIRCULATORY NORTH ROUTE FOR THE PERIOD OF FEBRUARY 3, 2015 THROUGH JANUARY 3, 2017; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Holmes, seconded by Commissioner Riley to pass the resolution.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

15. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 7 OF THE CODE OF ORDINANCES OF OPA-LOCKA, FLORIDA, ENTITLED "BUILDING, HOUSING AND STRUCTURAL REGULATIONS" AMENDING ARTICLE II "HOUSING" TO CREATE THE POSITION OF MINIMUM HOUSING OFFICER; AND PROVIDING FOR PENALTIES AND ENFORCEMENT; PROVIDING FOR REPEALER, SEVERABILITY, CODIFICATION AND AN EFFECTIVE DATE. *Sponsored by Commissioner Riley*

The above resolution was read by Attorney Brown.

Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the floor for public hearing was closed.

It was moved by Commissioner Riley, seconded by Commissioner Pigatt for discussion.

Commissioner Pigatt thanked the mayor for doing the research and bringing the item forth because he feels it is needed.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS:

17. CITY MANAGER'S REPORT:

City Manager Harrell said there several things pressing with the City, one being the pump stations. She announced that stations 4, 7, and 9 were now operational. The pumps that are on bypass will be taken care of in the coming weeks. Getting those pump stations back on line is estimated to cost around two hundred and fifteen thousand dollars ($215,000.00). The Finance department has been working diligently on the budget and the audits and the goal is to submit the budget to the state by Tuesday, October 30, 2018. Phase II of the pothole repairs will commence with the passing of the new budget. The water bills will include an informational in the bills to inform the residents of the status of the bills.

Commissioner Riley asked the manager for an update on the crane truck.

City Manager Harrell said the crane truck had been out of order for several months. The City had not paid the vendor and therefore he did not order the parts to fix it; he has now been paid and the truck is expected to be fixed in the near future.

Vice Mayor Kelley said he has sent several e-mail requests to the manager and has not received any response to his requests. There are real issues that are ongoing in the City and they are not being addressed.

City Manager Harrell thanked the commission for all of their years of service and wished them the best in their endeavors once they are no longer elected officials after the coming elections.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Vice Mayor Kelley announced the Mock Commission Meeting with Nathan B. Young and Robert B. Ingram Elementary Schools that will be held tomorrow; the Town Hall Meeting with State Representative James Bush will be held on Tuesday, November 13, 2018 at 6:30 p.m. The Thanksgiving Fellowship will be held in partnership with all of the churches in the community and food bags will be handed out while supplies last.

Commissioner Pigatt said due to the high amount of complaints on the water bills, he would like to request a workshop as soon as possible to address issues.

City Attorney Brown thanked the commission for the vote of confidence in hiring him as the attorney. He is invested in the City and as long as he is here, he will defend the City.

Mayor Taylor thanked Commissioner Holmes for being there in her family's time of need. She thanked Vice Mayor Kelley for always keeping everyone in prayer. She thanked Commissioner Pigatt for servicing alongside the commission on the dais. She then thanked Commissioner Riley for being there for her and having a close bond with her father. She closed by thanking all of the departments, residents, and citizens for all they do on behalf of the City.

Commissioner Riley thanked Mayor Taylor, Commissioner Holmes, and Vice Mayor Kelley for the time they have had together for over forty (40) years.

Mayor Taylor asked the attorney to keep the new commission in line and in order.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Vice Mayor Kelley seconded by Commissioner Pigatt to adjourn the meeting at 8:53 p.m.

MAYOR

ATTEST:

CITY CLERK